

		Regents of Univ. of Calif. (1998) 67 Cal.App.4th 437, 455.) Plaintiff requests an additional \$987.50 for 1.5 hours to prepare and draft the instant fee motion and supporting declaration, and 1 hour to attend the hearing on the motion, at \$395 per hour. (Tungate Decl., ¶ 15.) The amount of time is reasonably expended and anticipated. The Court GRANTS an additional \$987.50 for the instant fee motion. The Court GRANTS Plaintiff's motion for attorneys' fees in the total amount of \$22,744.50 (\$21,757 + \$987.50). Plaintiff failed to comply with California Rules of Court, rule 3.1110(f)(4) which requires that unless submitted by a self-represented party, electronic exhibits include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit. The court cautions counsel to fully comply with the rules of court. Plaintiff to give notice.
114	Zoomlion Heavy Industry Science & Technology Co, Ltd v. Guoqiang 2025-01511982	APPLICATION FOR RIGHT TO ATTACH ORDER/WRIT OF ATTACHMENT - DENIED Plaintiffs Zoomlion Heavy Industry Science and Technology Co., Ltd. and Zoomlion Financial Leasing (Beijing) Co., Ltd. ("Plaintiffs") apply for an order granting them a right to attach order and writs of attachment against defendant Fan Guoqiang ("Defendant"). " 'Before an attachment order is issued, the court must find all of the following: (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) the applicant has established "the probable validity" of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery upon which the request for attachment is based; and (4) the amount to be secured by the attachment is greater than zero. [Citation.] The plaintiff has the burden of establishing the probable validity of the

		claim upon which the attachment is based.’ [Citations.] Probable validity means ‘it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.’” (Park v. NMSI, Inc. (2023) 96 Cal.App.5th 346, 354.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Proc., § 484.030.) “[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (Code Civ. Proc., § 483.010(a).) Plaintiffs seek to enforce four foreign judgments under California’s Uniform Foreign-Country Money Judgments Recognition Act (UFCMJRA), codified in Code of Civil Procedure sections 1713 through 1724. Plaintiffs argue they have satisfied their burden by submitting certified copies of the judgments and Defendant cannot carry his burden to defeat recognition. They contend that they have therefore demonstrated the probable validity of their claims. Defendant argues Plaintiffs’ showing of probable validity fails because the Chinese court system in which the foreign judgments were rendered and the particular proceedings were biased and lacked due process. Because the UFCMJRA precludes recognition for judgments rendered under a judicial system that does not provide impartial tribunals or procedures compatible with due process, Plaintiffs have not established that the foreign judgments are likely to be recognized by this Court. Defendant further argues that the underlying foreign court proceedings lacked fundamental fairness in that the judgments were predetermined, recognized standards were disregarded, and the proceedings were biased in favor of the government-owned Plaintiffs.
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		The UFCMJRA applies to a foreign-country judgment to the extent that the judgment both grants or denies recovery of a sum of money and, under the law of the foreign country where rendered, is final, conclusive, and enforceable. (Code Civ. Proc., § 1715(a).) The UFCMJRA does not apply to a foreign-country judgment to the extent that the judgment is a fine or other penalty. (Code Civ. Proc., § 1715.) “A party seeking recognition of a foreign-country judgment has the burden of establishing that the foreign-country judgment is entitled to recognition under this chapter.” (Code Civ. Proc., § 1715(c).) While Plaintiffs assert that they have satisfied their initial burden by submitting certified copies of the judgments, the only evidence filed in support of their Application is the Declaration of Minda Huang (“Huang Declaration”). The foreign judgments are not attached thereto. While they are attached to the Complaint, a complaint may support a request for attachment in lieu of or in addition to an affidavit only when it is verified. (Code Civ. Proc., § 482.040.) Plaintiffs’ Complaint is not verified. Moreover, even if the Complaint were verified, the foreign judgments attached thereto do not appear to be admissible evidence. The foreign judgments have been translated from Chinese to English. Cal. Rules of Court, rule 3.1110(g) provides: “Exhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter.” Here, while the Complaint’s exhibits include Certificates of Translation from Chinese to English, the Certificates are executed by J.W.P. van Buren, a representative of JK Translate. It appears that J.W.P. van Buren is not the translator who performed the translation and instead is only a representative of the company JK Translate. However, the interpreter must personally certify the translations under oath. Further, even if J.W.P. van Burden was the interpreter, there is no evidence as to his qualifications and therefore no evidence that the translations attached to the Complaint were done by a qualified interpreter.
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		And lastly, Judgment #4, attached as Exhibit D, states that Defendant shall pay RMB 7,823,594.95 and penalty interest of RMB 4,000,000. Plaintiffs offer no calculations to explain the differences between the numbers in the foreign judgments attached to the Complaint and those set forth in their supporting declaration. Based on all the above, the Court finds that Plaintiffs have failed to carry their initial burden. Therefore, the Application is DENIED. Plaintiffs to give notice.
115	Beasley v. Soheil 2024-01411587	MOTION TO BE RELIEVED AS COUNSEL OF RECORD - GRANTED Samuel Ogbogu (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Yoshira Beasley. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements are satisfied. Thus, the motion is GRANTED. The moving attorney is directed to submit a proposed order (form MC-053) for the court’s signature. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
116	Robicheaux v Rowshan 2022-01261647	MOTION FOR SUMMARY ADJUDICATION - DENIED Plaintiff/Cross-Defendant Grant Robicheaux moves for summary adjudication as to the first cause of action for fraud brought by Cross-Complainants Dr. Kasra Rowshan and Newport Care, second cause of action for negligent misrepresentation brought by Rowshan and Newport Care, fifth cause of action for breach of fiduciary duty brought by Rowshan and Newport Care, and sixth cause of action for breach of fiduciary duty brought by Rowshan and Top Surgical, as asserted in the second amended cross-complaint.